

ATTORNEY OR PARTY WITHOUT ATTORNEY ROBERT K. HANNA, State Bar No.: 341970 / JUNQIAO XIAO, State Bar No.: 341670 / HYO JIN JULIA JUNG, State Bar No.: 316090 / MICHAEL D. KAHN, State Bar No.: 236898 / LAMONT FREEMAN, State Bar No.: 349862 MIDLAND CREDIT MANAGEMENT, INC 350 CAMINO DE LA REINA, SUITE 100 SAN DIEGO, CA 92108 California Debt Collection License #10644-99 TELEPHONE NO.: (800) 875-7159 FAX NO.: (858) 309-1588 E-MAIL ADDRESS: ☒ ATTORNEY FOR (Name): MIDLAND CREDIT MANAGEMENT, INC. ☒ ORIGINAL JUDGMENT CREDITOR ☐ ASSIGNEE OF RECORD	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: MAILING ADDRESS: 9425 PENFIELD AVE. CITY AND ZIP CODE: CHATSWORTH CA 91311 BRANCH NAME: CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT	
PLAINTIFF: MIDLAND CREDIT MANAGEMENT, INC. DEFENDANT: THOMAS TERNUS	
WRIT OF ☒ EXECUTION (Money Judgment) ☐ POSSESSION OF ☐ Personal Property ☐ SALE ☐ Real Property	CASE NUMBER: 24CHLC00819 ☒ Limited Civil Case (including Small Claims) ☐ Unlimited Civil Case (including Family and Probate)

1. **To the Sheriff or Marshal of the County of: SACRAMENTO**
 You are directed to enforce the judgment described below with daily interest and your costs as provided by law.
2. **To any registered process server:** You are authorized to serve this writ only in accord with CCP 669.080 or CCP 715.040.
3. (Name): Midland Credit Management, Inc.
 is the ☒ original judgment creditor ☐ assignee of record whose address is shown on this form above the court's name.
4. **Judgment debtor** (name, type of legal entity if not a natural person, and last known address): 9. ☐ *Writ of Possession/Writ of Sale Information on next page.*

10. ☐ This writ is issued on a sister-state judgment.

For Items 11-17, see form MC-012 and form MC-013-INFO

11. Total judgment (as entered or renewed)	\$3,389.64
12. Costs after judgment (CCP 685.090)	\$0.00
13. Subtotal (add 11 and 12)	\$3,389.64
14. Credits to principal (after credit to interest)	\$0.00
15. Principal remaining due (subtract 14 from 13)	\$3,389.64
16. Accrued interest remaining due per CCP 685.050 (b) (not on GC 6103.5 fees)	\$88.21
17. Fee for issuance of writ	\$40.00
18. Total (add 15, 16, 17)	\$3,517.85
19. Levying officer:	
(a) Add daily interest from date of writ (at the legal rate on 15) (not on GC 6103.5 fees)	\$0.46
(b) Pay directly to court costs included in 11 and 17 (GC 6103.5, 68637; CCP 699.520(i))	\$0.00

THOMAS TERNUS
 2811 CHANTEL LN
 PALMDALE CA 93551-1597

☐ Additional judgment debtors on next page

5. **Judgment entered** on (date): May 13, 2024
 (See type of Judgment in item 22.)

6. ☐ **Judgment renewed** on (date):

7. **Notice of sale** under this writ

- a. ☒ has not been requested.
 b. ☐ has been requested (see next page).

8. ☐ Joint debtor information on next page.

[SEAL]



20. ☐ The amounts called for in items 11-19 are different for each debtor. These amounts are stated for each debtor on Attachment 20.

Issued on (date): 12/18/2024

Clerk, by C. Torrey, Deputy

NOTICE TO PERSON SERVED: SEE NEXT PAGE FOR IMPORTANT INFORMATION.

PLAINTIFF: MIDLAND CREDIT MANAGEMENT, INC.	CASE NUMBER:
DEFENDANT: THOMAS TERNUS	24CHLC00819

21. ☐ Additional judgment debtor (name, type of legal entity if not a natural person, and last known address):

┌	┐	┌	┐
L	J	L	J

22. The judgment is for (check one):

- a. ☐ wages owed.
b. ☐ child support or spousal support.
c. ☒ other.

23. ☐ Notice of sale has been requested by (name and address):

┌	┐	┌	┐
L	J	L	J

24. ☐ Joint debtor was declared bound by the judgment (CCP 989-994)

- | | |
|---|---|
| a. ☐ on (date): | a. ☐ on (date): |
| b. name, type of legal entity if not a natural person, and last known address of joint debtor | b. name, type of legal entity if not a natural person, and last known address of joint debtor |

┌	┐	┌	┐
L	J	L	J

- c. ☐ Additional costs against certain joint debtors (itemize): ☐ Below ☐ On Attachment 24c

25. ☐ (Writ of Possession or Writ of Sale) **Judgment** was entered for the following:

- a. ☐ Possession of real property: The complaint was filed on (date):
(Check (1) or (2). Check (3) if applicable. Complete (4) if (2) or (3) have been checked.)
- (1) ☐ The Prejudgment Claim of Right to Possession was served in compliance with CCP 415.46. The judgment includes all tenants, subtenants, named claimants, and other occupants of the premises.
The judgment includes all tenants, subtenants, named claimants, and other occupants of the premises.
- (2) ☐ The Prejudgment Claim of Right to Possession was NOT served in compliance with CCP 415.46
- (3) ☐ The unlawful detainer resulted from a foreclosure sale of a rental housing unit. (An occupant not named in the judgment may file a Claim of Right to Possession at any time up to and including the time the levying officer returns to effect eviction, regardless of whether a Prejudgment Claim of Right to Possession was served.)
(See CCP 415.46 and 1174.3(a)(2).)
- (4) If the unlawful detainer resulted from a foreclosure (item 25a(3)), or if the Prejudgment Claim of Right to Possession was not served in compliance with CCP 415.46 (item 25a(2)), answer the following:
- (a) The daily rental value on the date the complaint was filed was \$
- (b) The court will hear objections to enforcement of the judgment under CCP 1174.3 on the following dates
(specify):
- b. ☐ Possession of personal property.
☐ If delivery cannot be had, then for the value (itemize in 25e) specified in the judgment or supplemental order.
- c. ☐ Sale of personal property.
- d. ☐ Sale of real property.
- e. The property is described: ☐ Below ☐ On Attachment 25e

PLAINTIFF: MIDLAND CREDIT MANAGEMENT, INC.
 DEFENDANT: THOMAS TERNUS

CASE NUMBER:
 24CHLC00819

NOTICE TO PERSON SERVED

WRIT OF EXECUTION OR SALE. Your rights and duties are indicated on the accompanying *Notice of Levy* (form EJ-150).

WRIT OF POSSESSION OF PERSONAL PROPERTY. If the levying officer is not able to take custody of the property, the levying officer will demand that you turn over the property. If custody is not obtained following demand, the judgment may be enforced as a money judgment for the value of the property specified in the judgment or in a supplemental order.

WRIT OF POSSESSION OF REAL PROPERTY. If the premises are not vacated within five days after the date of service on the occupant or, if service is by posting, within five days after service on you, the levying officer will remove the occupants from the real property and place the judgment creditor in possession of the property. Except for a mobile home, personal property remaining on the premises will be sold or otherwise disposed of in accordance with CCP 1174 unless you or the owner of the property pays the judgment creditor the reasonable cost of storage and takes possession of the personal property not later than 15 days after the time the judgment creditor takes possession of the premises.

EXCEPTION IF RENTAL HOUSING UNIT WAS FORECLOSED. If the residential property that you are renting was sold in a foreclosure, you have additional time before you must vacate the premises. If you have a lease for a fixed term, such as a year, you may remain in the property until the term is up. If you have a periodic lease or tenancy, such as from month-to-month, you may remain in the property for 90 days after receiving a notice to quit. A blank form *Claim of Right to Possession and Notice of Hearing* (form CP10) accompanies this writ. You may claim your right to remain on the property by filling it out and giving it to the sheriff or levying officer.

EXCEPTION IF YOU WERE NOT SERVED WITH A FORM CALLED PREJUDGMENT CLAIM OF RIGHT TO POSSESSION. If you were not named in the judgment for possession and you occupied the premises on the date on which the unlawful detainer case was filed, you may object to the enforcement of the judgment against you. You must complete the form *Claim of Right to Possession and Notice of Hearing* (form CP10) and give it to the sheriff or levying officer. A blank form accompanies this writ. You have this right whether or not the property you are renting was sold in a foreclosure.